

May 18, 2026

MEMORANDUM TO: Board of Directors

FROM: Zachary N. Brown, Chief Information Officer
Chief Information Officer Organization

SUBJECT: *Joint Final Rule: Financial Data Transparency Act Joint Standards*

I. SUMMARY

Staff recommends that the FDIC Board of Directors (“FDIC Board”) approve the attached Joint Final Rule (“Final Rule”). Through this Final Rule, the Federal Deposit Insurance Corporation (“FDIC”) would establish data standards for collections of information, as required by the Financial Data Transparency Act of 2022 (“FDTA”).

II. BACKGROUND

The FDTA was enacted on December 23, 2022 as Title LVIII of the *James M. Inhofe National Defense Authorization Act for Fiscal Year 2023*.

The FDTA imposes requirements on the Department of the Treasury (“Treasury”); Board of Governors of the Federal Reserve System; Office of the Comptroller of the Currency, Treasury; Consumer Financial Protection Bureau; Securities and Exchange Commission; FDIC; Federal Housing Finance Agency; National Credit Union Administration Board; and Commodity Futures Trading Commission (“CFTC”)¹ (collectively, the “Agencies”), as described in more detail below.

A. Statutory Mandate: Joint Rule

The FDTA requires the Agencies to jointly issue a rule that establishes data standards for the collections of information reported to each Agency by financial entities under the jurisdiction

¹ Treasury designated the CFTC as a “covered agency” under the FDTA on May 3, 2024.

Concur:

Matthew P. Reed
General Counsel

of the Agencies and the data collected from the Agencies on behalf of the Financial Stability Oversight Council (“FSOC”).²

The FDTA requires the Agencies to consult with Federal departments and multi-agency initiatives responsible for data standards before issuing the Final Rule.³

B. Agency-specific Rules and Impact of Jointly-established Standards

The FDTA requires each Agency, other than Treasury and the CFTC, to issue individual Agency rules adopting the established data standards (each, an “Agency-specific rulemaking”).⁴ A standard “established” in the Joint Final Rule creates a presumption that the FDIC will “adopt” such “established” standard in any Agency-specific rulemaking that the FDTA requires the FDIC to issue:

- for existing information collections (as defined under the Paperwork Reduction Act of 1995 (“PRA”),⁵ described in more detail below) that are received by the FDIC from depository institutions under the FDI Act or by financial companies under Title II;
- where the standards are applicable; and
- when the standards are feasible;

provided that, the FDIC has discretion to scale adopted standards to reduce any unjustified burden on smaller regulated entities and tailor adopted standards, as the FDIC sees fit in accordance with the FDTA.

III. NOTICE OF PROPOSED RULEMAKING

A. Overview

On July 30, 2024, the FDIC Board approved a proposed rule (the “NPR”), with a 60-day comment period, that would establish joint data standards.

B. Comments Received

The agencies received over 150 unique comments on the NPR. The Agencies received comments both in support of and in opposition to the NPR as well as comments that asked questions or suggested alternatives to the proposed joint standards.

Many commenters opposed the proposal to establish the Financial Instrument Global Identifier (“FIGI”) as a financial identifier, arguing that there is neither a statutory requirement to

² 12 U.S.C. § 5334.

³ 12 U.S.C. § 5334(c)(2)(A). During the development of the proposed rule, Agency staff (other than CFTC staff) met with staff from the FSOC, the CFTC (prior to CFTC designation as a “covered agency”), the Department of Homeland Security, the Federal Chief Data Officer Council, the Federal Financial Institutions Examination Council, the National Institute of Standards and Technology, and the Federal Evaluation Officer Council.

⁴ *See, e.g.*, 12 U.S.C. § 1831cc.

⁵ 44 U.S.C. 3502(3) (defining the term “collection of information,” as used in 44 U.S.C. 3501 et seq.).

establish, nor a need for, a financial instrument common identifier. Commenters also cited potential operational and other burdens associated with reporting FIGI.

After considering comments, the Agencies are not establishing FIGI as a joint standard. Given the nature of the issues raised by commenters on the proposal to establish FIGI, the Agencies are not establishing a common financial instrument identifier as part of this Final Rule.

IV. JOINT FINAL RULE

Based on the comments received, the Agencies are proposing to issue the Final Rule generally as proposed, except that the Agencies are (1) not establishing the proposed joint standard of the FIGI for the identification of financial instruments (as discussed above), (2) specifying that International Organization for Standardization (“ISO”) 10962 – Securities and related financial instruments — Classification of financial instruments (the “CFI”) is to be used in the classification, rather than identification, of financial instruments that are not swaps or security-based swaps, (3) establishing ISO 8601 for dates without reference to the Basic format option, and (4) more explicitly stating in the joint standards that the Agencies may tailor the data standards they ultimately adopt or adopt data standards not established in the joint final rule.

A. Collections of Information

Pursuant to the FDTA, following the establishment of the joint standards in the Final Rule, each Agency is required to implement the standards, to the extent feasible, in their *collections of information*.

The Agencies proposed to define the term “collections of information” in the FDTA by reference to the definition of that term in the PRA.

Some commenters expressed concerns about the breadth of the definition of “collections of information.” Other commenters requested clarity as to which collections of information would be subject to the proposed data standards, how those collections would be covered, and how the Agencies would treat ad hoc reporting.

The PRA’s definition of “collections of information” is widely understood by the Agencies and public stakeholders, aligns with the purpose of the FDTA, and is consistent with a plain language understanding of the term. To the extent questions remaining regarding specific collection of information, the statute provides the Agencies the authority to resolve those questions at the Agency implantation stage. As such, the Final Rule would define “collections of information” as proposed.

B. Legal Entity Identifier

The Dodd-Frank Act, as amended by the FDTA, requires the joint standards to include “a common nonproprietary legal entity identifier that is available under an open license for all entities required to report to” the Agencies. The Agencies proposed to establish ISO 17442 –

Financial Services – the Legal Entity Identifier (“LEI”) as the legal entity identifier joint standard.

Many commenters supported the establishment of the LEI as the legal entity identifier joint standard, noting, among other things, it would promote interoperability and improve identification of entities across jurisdictions. Other commenters raised concerns that the LEI does not meet the requirements of the FDTA, that establishment of the LEI would impose costs and burdens on entities (particularly on small entities) who would be required to obtain LEIs, and that the LEI is not widely adopted and not fit for purpose for some entities.

As LEI best satisfies all the FDTA’s requirements for legal entity identifiers (*i.e.*, it is common, nonproprietary, and available under an open license),⁶ the Final Rule would establish the LEI as proposed.

C. Other Common Identifiers

The joint final rule also includes the identifiers discussed below.⁷

1. UPI and CFI

For swaps and securities-based swaps, the Agencies proposed to establish ISO 4914 – Financial services — Unique product identifier (“UPI”).⁸ For other types of financial instruments, the Agencies proposed to establish ISO 10962 – Securities and related financial instruments — Classification of financial instruments (“CFI”) code.⁹

Commenters largely supported establishing both the UPI and CFI standards, highlighting that both standards are taxonomic systems for financial instruments that are useful for aggregating data and increasing global transparency. Several commenters observed that the CFI is a classification, not identification, system and questioned how one would use CFI to identify a financial instrument.

The Agencies proposed establishing CFI for the identification of financial instruments that are not swaps or security-based swaps. However, CFI does not provide the means to “identify” any discrete, specific security, rather it enables classification of equities as a category (e.g., the category identifier “E” for equity securities and “P” for the subcategory of preferred shares). As such, the Final Rule clarifies this distinction.

As CFI and UPI together provide a taxonomic classification system for financial instruments, which best allows for mapping a wide variety of financial instruments across different markets, the Final Rule would establish the UPI as proposed. In response to the

⁶ 12 U.S.C. § 5334(c)(1)(A).

⁷ In general, FDIC staff expect that supervised entities will be able to implement many of these standards with a minimal amount of effort. Implementation will require Agency work to update systems and forms but should not require substantial new work for regulated entities, including insured depository institutions.

⁸ <https://www.iso.org/obp/ui/#iso:std:iso:4914:dis:ed-1:v1:en>.

⁹ <https://www.iso.org/obp/ui/en/#iso:std:iso:10962:ed-5:v1:en>.

comments, the Final Rule would establish the CFI and clarify that CFI is used to classify, not identify, financial instruments.

2. Date

For date fields, the Agencies proposed establishing the date as defined by ISO 8601¹⁰ using the Basic format option.

Most commenters supported the proposed standard, however commenters also raised concerns with the use of the Basic format option. For example, one commenter questioned the need for specifying use of the Basic format option. Other commenters opposed the proposed standard for a variety of reasons, including by expressing concerns about costs associated with revising existing systems.

The Agencies agree that there is no need to specify the Basic format option because any user of the information can convert dates between Basic and Extended formats in a relatively straightforward manner, given the only difference between the two is the existence of separators (For example, “YYYY-MM-DD” as opposed to “YYYYMMDD” to display a date). Given that this standard uniformly displays the order of the date components themselves and that it is relatively straightforward to convert dates between Basic and Extended formats, the Final Rule would establish the ISO 8601 standard for date formats but would not specify that the Basic format option would be required.

3. State

For identification of a state, possession, military “state” of the United States of America or a geographic directional, the Agencies proposed to establish the U.S. Postal Service Abbreviations, as published in Appendix B of Publication 28 “Postal Addressing Standards, Mailing Standards of the United States Postal Service.

Most of the comments relating to this proposed standard were supportive. However, one commenter noted that long names, and not abbreviations, are widely used throughout the derivatives market and have been incorporated into industry standards.

As compared to alternative numeric State codes, this standard is more widely used and is more conducive to use by both humans and machines. Accordingly, the Final Rule would establish this standard as proposed.

4. Countries

For identification of countries, the Agencies propose to establish the country codes with the code(s) for subdivisions, as appropriate, as defined by the most recent version of Geopolitical Entities, Names, and Codes (“GENC”).

¹⁰ <https://www.iso.org/iso-8601-date-and-time-format.html>.

While many commenters supported the proposed standard, a few commenters opposed it. Principally, these commenters were concerned that the GENC modifications to the ISO 3166 standard would be impractical to use in the context of derivative transactions and would be disruptive to that market, requiring the industry to incur additional costs given the broad international adoption of the unmodified ISO 3166 standard.

In response to these comments, the Agencies recognize that subsequent adoption of the standard in an Agency-specific rulemaking could require some entities to incur additional system costs. However, the Agencies emphasize that this final rule does not mandate the use of any specific standard. Rather, the decision whether to require use of a standard identified in this final rule is left to each individual agency in their Agency-specific rulemakings.

This profile addresses requirements unique to the U.S. Government for: restrictions in recognition of the national sovereignty of a country; identification and recognition of geopolitical entities not included in ISO 3166; and use of names of countries and country subdivisions that have been approved by the U.S. Board on Geographic Names. Given that this profile addresses these unique requirements, the Final Rule would establish the GENC standard as proposed.

5. Currencies

For identification of currencies, the Agencies propose to establish the alphabetic currency code as defined by ISO 4217 Currency Codes.¹¹ Commenters generally expressed support for the proposed standard.

Given that these internationally recognized codes are widely used and incorporated into many other data standards, the Final Rule would establish the ISO 4217 standard for currency codes as proposed.

D. Data Transmission and Schema and Taxonomy Format Standards

In the NPR, the Agencies proposed to establish four properties for data transmission and schema and taxonomy formats, derived from the requirements listed in the FDTA.¹² Specifically, the Agencies proposed that the schema and taxonomy formats will, to the extent practicable:

- render data fully searchable and machine-readable;
- enable high quality data through schemas, with accompanying metadata documented in machine-readable taxonomy or ontology models, which clearly define the semantic meaning of the data, as defined by the underlying regulatory information collection requirements, as appropriate;

¹¹ <https://www.iso.org/iso-4217-currency-codes.html>.

¹² Data transmission formats refer to the formats that the Agencies use to digitally receive collections of information. Some collections of information gather data that has an associated schema, taxonomy, or ontology model that describes the syntax, structure, or semantic meaning of a data asset. A schema and taxonomy format is the formal language used to describe a schema and taxonomy.

- ensure that a data element or data asset that exists to satisfy an underlying regulatory information collection requirement be consistently identified as such in associated machine-readable metadata; and
- be nonproprietary or available under an open license.

The principles-based approach has significant benefits that were recognized by some commenters. This approach would provide the Agencies the flexibility to adopt specific, fit-to-purpose formats and also adopt new formats as they are developed, provided that the new formats have the listed properties. Further, the Agencies believe that data transmission or schema and taxonomy formats that have these properties are likely to be interoperable with each other.

For the foregoing reasons, the Final Rule would establish the four properties proposed as requirements for data transmission and schema and taxonomy formats.

V. CONCLUSION

For the reasons set forth above, FDIC staff present to the FDIC Board the attached Final Rule for approval and request authorization to publish it in the *Federal Register*.

VI. STAFF CONTACTS

Chief Information Officer Organization

Mark Montoya, Senior IT Specialist, (703) 254-0225

Legal Division

Bill Piervincenzi, Supervisory Counsel, (202) 898-6957

Chris Blickley, Counsel, (202) 262-4709

Michelle Mire, Senior Attorney, (571) 344-8455

Robert Meiers, Senior Attorney, (571) 645-3062